

Jayashree vs Sudhir Patil on 1 December, 2023

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NC: 2023:KHC-K:8933

CP No. 200068 of 2023

IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH

DATED THIS THE 1ST DAY OF DECEMBER, 2023

BEFORE

THE HON'BLE MRS JUSTICE M G UMA

CIVIL PETITION NO.200068 OF 2023 (RES)

BETWEEN:

SMT. JAYASHREE, W/O SUDHIR PATIL,
D/O SIDDAGOND KAMAGOND,
R/O: PLOT NO.79, NGO COLONY,
OPP. JAIN BASADI, ITTANGIHAL ROAD,
VIJAYAPURA, KARNATAKA-586102.

...PETITIONER

(BY SRI SANGANAGOUDA V. BIRADAR, ADVOCATE)

AND:

SRI SUDHIR PATIL
S/O SHIVRAO PATIL,
R/O: SHIVANAGAR,

BIDAR-585401.

...RESPONDENT

Digitally signed
by SHILPA R
TENIHALLI
Location: HIGH
COURT OF
KARNATAKA

(BY SRI K. M. GHATE, ADVOCATE)

THIS CP IS FILED U/S. 24 OF THE CPC, PRAYING TO a)
TRANSFER OF THE CASE BEARING M.C NO.97/2023 BEFORE THE
HON'BLE COURT OF THE PRINCIPAL JUDGE FAMILY COURT,
BIDAR AT BIDAR TO THE PRINCIPAL JUDGE FAMILY COURT
VIJAYAPUR AT VIJAYAPUR. b) PASS ANY OTHER ORDER AS THIS
HON'BLE COURT DEEMS FIT AND PROPER IN THE FACT AND
CIRCUMSTANCES OF THE CASE IN THE INTEREST OF JUSTICE
AND EQUITY.

THIS PETITION COMING ON FOR ADMISSION, THIS DAY,

THE COURT MADE THE FOLLOWING:

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ORDER

The petitioner- wife has filed this petition under Section 24 of CPC, praying to transfer M.C.No.97/2023 pending on the file of the learned Principal Judge, Family Court at Bidar (hereinafter referred to as 'Trial Court' for brevity), filed by the respondent- husband under Section 13(1)(ia) and (ib) of Hindu Marriage Act, 1955 seeking dissolution of marriage, to the learned Principal Judge, Family Court at Vijayapur.

2. Heard Sri Sangnagouda V. Biradar, learned counsel for the petitioner and Sri K.M.Ghate, learned counsel for the respondent. Perused the materials on record.

3. Learned counsel for the petitioner submitted that the petitioner had filed Crl.Misc.No.425/2023 under Section 125 of Cr.PC, seeking maintenance and the same is pending before the Family Court at Vijayapur. In the meantime, the respondent- husband filed M.C.No.97/2023 seeking decree of divorce, which is now pending before the Family Court at Bidar. The petitioner is experiencing difficulty in attending the proceedings at Bidar, as she is residing in Vijayapur. Hence, he prays for allowing the petition.

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4. Learned counsel for the respondent submits that he has no objection to allow the petition.

5. Perused the materials on record. The following point would arise for my consideration:

"Whether the petitioner has made out any ground to allow the petition?"

My answer to the above point is in the 'Affirmative' for the following;

REASONS

6. In light of the contention taken in the petition, the marriage between the petitioner and the respondent is admitted. It is the specific contention of the petitioner herein that she had filed Crl.Misc.No.425/2023 before the learned Principal Judge, Family Court, Vijayapur under Section 125 of Cr.PC, claiming maintenance from the respondent. Apparently, the petitioner herein is a house wife having no independent source of income. Naturally, she finds it difficult in travelling from Vijayapur to Bidar and contest M.C.No.97/2023.

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7. Therefore, I am of the opinion that the said M.C.No.97/2023 pending before the learned Principal Judge, Family Court at Bidar may have to be transferred to the Family Court at Vijayapur where Crl.Misc.No.425/2023 is pending.

8. Accordingly, I answer the above point in the affirmative and proceed to pass the following:

ORDER

(i) The petition is allowed.

(ii) M.C.No.97/2023 now pending on the file of Principal Judge, Family Court, Bidar, is ordered to be transferred to the Court of Principal Judge, Family Court, Vijayapur, forthwith, for further trial and disposal in accordance with law.

(iii) The petitioner & the respondents herein are directed to appear before the Court of Principal Judge, Family Court, Vijayapur on 04.01.2024 at 11.00 a.m., without waiting for issuance of fresh summons.

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(iv) Registry to communicate the order to both the Courts for information and for necessary action.

Sd/-

JUDGE PN